

8	30-2026-01564481 Lee vs. Koo	The Court has read the Plaintiff's Motion for Summary Judgment (ROA 60), Defendant's Opposition (ROA 63) and Defendant's Declaration to Support Opposition (ROA 64). Based on the evidence presented, the Court grants the Plaintiff's Motion for Summary Judgment as the Court finds there are no triable issues. California Civil Code section 1947 states, "When there is no usage or contract to the contrary, rents are payable at the termination of the holding, when it does not exceed one year. If the holding is by the day, week, month, quarter, or year, rent is payable at the termination of the respective periods, as it successively becomes due." Defendant entered into a written contract with the Plaintiff for the rental of the premises for a set time frame from 3/15/2025 to 3/14/2026, which required an up-front payment of \$54,000 in rent and a \$ 4,500 security deposit, which the Defendant paid. The Parties then entered into a month-to-month agreement starting on 3/15/2026 for \$ 4,500 per month, payable on the 1st of each month. The rental period for which the Notice to Pay Rent or Quit was filed related to the month-to-month agreement, not to the original agreement for the property. Defendants misstate the applicability of Civil Code section 1947. Plaintiff has established a valid Notice to Pay Rent or Quit which was properly served on the Defendants. Defendants raise in their Opposition that notice of the Motion for Summary Judgment was not proper due to timing. The notice for a California unlawful detainer proceeding only requires 5 days' notice prior to a hearing; Defendant indicated in the opposition that the Motion for Summary Judgment was served via FedEx 9 days in advance of the hearing. Therefore, this is not a valid objection to notice. Lastly, the Defendants argue an issue regarding discovery. Discovery in an unlawful detainer proceeding is closed five days before the first set trial date. Here, the trial date is set for 7/13/2026, so five days in advance of that was July 8, 2026, and no discovery motions were filed prior to that date. Therefore, the Court enters judgment for the Plaintiff for possession of the property located at 122 Excursion, Irvine, CA 92618, County of Orange; forfeiture of the lease. A monetary judgment of \$6677 in past-due rent, holdover damages of \$10,350 (\$150.00 per day for 69 days), and \$1000 in attorneys' fees and court costs. Judgment applies to all unknown occupants or claimants under CCP§ 415.46. A writ of possession shall issue forthwith. Plaintiff is ordered to provide notice of the Court's ruling.
10	30-2026-01567697 Kelly vs. Solomonian	The Court has read and considered the Defendant's Motion for Reconsideration of Denial of Defendant's Motion to Strike Plaintiff's Unlawful Detainer Action (ROA 52), Supplemental Motion for Reconsideration of Denial of Defendant's Motion to Strike Plaintiff's Unlawful Detainer Complaint (ROA 49), and Plaintiff's Opposition (ROA 57). California Code of Civil Procedure section 1008 governs Motions for Reconsideration. When seeking a motion for reconsideration, the Legislature required parties to submit an application based upon new or different facts, circumstances, or law. Defendants fail to establish that the application for reconsideration is based on new or different facts, circumstances, or law. On June 23, 2026, the Defendant orally objected to the Court's tentative ruling on